STANDARD OPERATING PROCEDURE	G-1500

	SARPY COUNTY SHERIFF'S OFFICE PAPILLION * NEBRASKA **GREG LONDON** **SHERIFF**	DATE ISSUED 12/04/06	DATE REVISED **05/05/16**	DATE REVIEWED 02/02/25
		APPROVED: *GREG LONDON*		

CHAPTER TITLE GENERAL	RESOURCES N.R.S. 53-103 DRUG-FREE WORKPLACE ACT OF 1988
SUBJECT DRUG-FREE WORKPLACE	CROSS REFERENCE G-2200 DISCIPLINE G-2300 MEMBER RIGHTS AND REQUIREMENTS G-7600 EMPLOYEE ASSISTANCE PROGRAM G-10200 EVIDENCE AND PROPERTY

I. Purpose:

The purpose of this policy is to provide the guidelines for a drug-free workplace at the Sarpy County Sheriff's Office.

II. Policy:

The Sarpy County Sheriff's Office is committed to maintaining a safe, healthy, and productive work environment for all employees and to ensure the safe and efficient delivery of services to the citizens of Sarpy County. To that end, the Sheriff's Office prohibits the use and/or abuse of alcohol, illegal drugs, prescription drugs or any other substance which could impair an employee's ability to perform safely and effectively the functions of his or her assigned position. All Sheriff's Office employees are subject to this policy and any violation of this policy may result in disciplinary action up to and including termination.

III. Definitions:

A. ALCOHOL OR DRUG ABUSE: For purposes of this policy, alcohol and/or drug abuse shall be defined as an employee's dependence or addiction to sufficient severity to have the effect of impairing the performance of his or her official duties or his or her job performance.

B. LEGAL DRUG: Prescribed drugs and over-the-counter drugs which have been legally obtained and are being used for the purpose for which they are prescribed or manufactured.

C. ILLEGAL DRUG: Any drug which is not legally obtainable, or which is legally obtainable but has not been legally obtained. The term includes prescribed drugs not legally obtained and prescribed drugs not being used for prescribed purposes.

D. ALCOHOL: Alcohol shall mean any product of distillation of any fermented liquid, whether rectified or diluted, whatever may be the origin thereof, synthetic ethyl alcohol, the four varieties of liquor defined in subdivisions (2) to (5) of section 53-103 of Nebraska Statutes alcohol, spirits, wine and beer, every liquid or solid, patented or not, containing alcohol, spirits, wine, or beer, and alcohol used in the manufacture of denatured alcohol, flavoring extracts, syrups, or medicinal, mechanical, scientific, culinary or toilet preparations.

E. REASONABLE SUSPICION: For the purposes of this policy, reasonable suspicion is a belief based on objective facts sufficient to lead a reasonably prudent person to suspect that an employee is under the influence of drugs and/or alcohol so that the employee's ability to perform his or her job duties is impaired or so that the employee's ability to perform his or her job safely is reduced. Reasonable suspicion may result from actual observation of the use or ingestion of a substance by an employee. It may be based on reliable information that the employee is currently or has recently used or possessed a controlled substance, or an open container with alcohol on the job. Reasonable suspicion may result from an observation of physical symptoms such as slurred speech; red, watery eyes; unsteady gait; dilated pupils, and drowsiness and actual sleeping on duty. In addition, reasonable suspicion may result from the observation or behavioral symptoms such as severe mood swings, unexplained personality changes, inattention to personal hygiene, and frequent accidents.

IV. Procedures:

A. Training:

1. All Sarpy County Sheriff's Office employees and each newly hired employee shall receive drug abuse awareness training. This training shall include, but may not be limited to:

a) A definition of drug abuse.
b) The effects of drug abuse.
c) The dangers of drug abuse in the workplace.
d) The availability of counseling and treatment programs through the employee assistance program (EAP).
e) The disciplinary actions which may be imposed on employees for drug abuse violations.

2. Each Sheriff's Office employee shall sign a drug-free workplace awareness form. The signed form shall be permanently maintained in the employee's personnel file. Each employee's signature shall certify that he or she:

a) Has received drug abuse awareness training.
b) Understands and shall abide by the drug-free workplace policy.
c) Is aware of counseling and treatment available through EAP.

d) Has knowledge of the possible disciplinary actions which may be imposed for violations of the drug-free workplace policy.
e) Has received an explanation of the drug testing policy.
f) Has received a copy of the drug testing guidelines.

3. Supervisors shall also be trained to recognize conduct and behavior that may be the result of an employee abusing drugs and/or alcohol. The training shall encourage supervisors to refer employees to EAP or other community resources prior to the abuse affecting job performance.

B. **Drug-Free Workplace Guidelines:** Violations of any of the following guidelines is subject to disciplinary action up to and including termination and/or criminal prosecution, unless the conduct falls within the exceptions contained in this policy.

1. No employee shall use, be under the influence of, store or possess any illegal drug.

2. No employee shall use or be under the influence of a legal drug (such as over-the counter or prescription drugs) while performing assigned duties, or while in or about the Sheriff's Office facilities or operating county vehicles, to the extent such use affects the safety of the employee or others or the employee's job performance.

a) Employees required to take medication shall inform their supervisors of any such potential situation.

b) Failure to advise a supervisor of the use of any medication which may interfere with the safe and effective performance of duties or operation of Sheriff's Office equipment may result in disciplinary action.

c) Employees using such substances may be required to submit a physician's release for duty.

3. No employee shall unlawfully manufacture, distribute, or dispense any illegal drug.

4. Employees shall not report for duty or remain on duty:

a) With the odor of alcoholic beverage about their persons.
b) With an alcohol concentration of .02 or greater.
c) Within eight (8) hours after consuming any alcoholic beverages. If an employee is called in for emergency duty (e.g. High Risk Incident) and he or she has consumed alcohol within eight (8) hours, he or she shall notify a supervisor or command officer and advise him or her that the employee has consumed alcohol, the amount of alcohol, and the time since the last consumption. The supervisor or

command officer may determine that the alcohol consumption will not impair the employee's performance and may have the employee report. The other two conditions a) and b) above must be adhered to under this circumstance.

5. No employee shall use or have in his or her possession any alcoholic beverage while on duty, nor purchase or consume alcoholic beverages while wearing any item of uniform apparel.

6. While off duty, employees shall refrain from consuming alcoholic beverages to the extent that it results in impairment, intoxication, or behavior that may discredit themselves or the Sheriff's Office.

7. Employees shall not store or bring alcoholic beverages into any Sheriff's Office facility or vehicle.

8. No employee shall refuse to submit to an alcohol or drug test as provided for in this policy nor tamper with any drug or alcohol test specimens, nor attempt to invalidate or interfere with the test or results in any manner.

9. Any employee convicted of any criminal drug statute violation is required to notify the Sheriff's Office as soon as possible (no later than five calendar days) after the conviction. The Sheriff's Office shall notify the federal government of any convictions in violation of the drug-free workplace policy.

C. Exceptions:

1. Property and Evidence:

a) The possession of alcoholic beverages and controlled substances as evidence or seized property is permitted.

b) Alcoholic beverages and controlled substances taken into custody by employees shall be properly tagged and secured according to established procedures (G-10200 Evidence and Property) prior to the end of the employee's tour of duty.

2. Training:

a) Alcoholic beverages may be consumed by employees who are subjects in controlled drinking exercises approved by a command officer as part of official Sheriff's Office training programs or demonstrations.

b) Instructors may check controlled substances out from an Evidence Technician for demonstration and field testing as part of official training courses approved by a command officer.

3. Investigations:

a) Alcoholic beverages may be purchased, possessed, and consumed in moderation when necessary for an undercover investigation, and when approved in advance by a command officer.

b) Other deviations from this policy may be made when necessary in the course of an investigation, and when approved in advance by a command officer.

D. **Counseling and Treatment:** The Sarpy County Sheriff's Office provides an employee assistance program to assist employees who suffer from drug and/or alcohol abuse (see G-7600 Employee Assistance Program).

1. It is the responsibility of each employee to seek assistance prior to drug abuse problems leading to disciplinary action.

2. Once a violation of this policy has occurred subsequent, voluntary use of EAP shall have no bearing on the determination of appropriate disciplinary action.

3. An employee's use of EAP shall not be used as a basis for disciplinary action and shall not be used against the employee in any manner. Utilization of EAP, however, shall not be a defense to the imposition of disciplinary action where facts proving a violation of this policy are independently obtained.

E. **Disciplinary Action:** Violation of this policy may result in disciplinary action, up to and including termination, even for a first offense.

F. **Drug and/or Alcohol Testing Guidelines:** The Sarpy County Sheriff's Office policy provides that individuals may be tested for the presence of drugs and/or alcohol in six circumstances.

1. As part of the pre-employment process. Any applicant who refuses to submit to a chemical test shall not be hired.

2. An employee injures or kills another person in the line of duty.

3. The employee in question requests his or her sobriety be documented.

4. A supervisor has reasonable cause to believe an employee is impaired by drugs and/or alcohol.

a) The employee's supervisor shall immediately relieve the employee from his or her duties and bring him or her to the LEC.

b) The supervisor shall immediately notify his or her commander.

c) The supervisor and commander and an FOP representative, if requested by the employee, shall interview the employee. If the supervisor and commander both have reasonable cause to believe the employee is impaired by drugs and/or alcohol, the employee shall be ordered to submit to a chemical test.

d) The supervisor and commander shall complete information reports as soon as possible, including an report number, regarding the specific details leading to the reasonable suspicion that the employee was impaired.

5. An employee is under investigation (see G-2300 Member Rights and Requirements).

6. An employee has been selected for the monthly random drug screening as required by policy.

a) The employee shall be randomly selected by a computer program witnessed by the Administrative Commander and a member of the FOP board.

b) Three employees shall be selected on the first Monday of each month.

c) No employee shall be randomly selected more than twice during a one-year period.

d) Each employee shall report at his or her next tour of duty to an independent, privately operated laboratory as approved by the county and the FOP.

e) The Administrative Commander shall assign numbers to each employee and shall be responsible for ensuring the confidentiality of the list.

f) The primary laboratory shall collect and maintain the urine samples and shall deliver the results directly to the Administrative Commander.

G. Drug and/or Alcohol Testing Procedures:

1. If selected for a random drug test or for the pre-employment process, the individual shall transport himself or herself to the appropriate laboratory and submit to a test of his or her urine.

2. If required to submit to a chemical test under all other circumstances, the employee shall be transported to the appropriate testing facility by a supervisor.

a) An employee believed to be under the influence of alcohol shall be escorted to the Sarpy County Jail and submit to a test of his or her breath on the current breath test instrument which shall be administered by a certified operator.

b) Under no circumstances shall an employee believed to be impaired be allowed to drive or transport himself or herself home or to a testing facility.

c) The employee shall be requested to sign a consent form authorizing the test and permitting release of test results to the Sheriff's Office. Refusal to sign the consent form or refusal to submit to the test may result in termination.

3. The chemical test shall be administered by an independent laboratory under contract with Sarpy County and with the approval of the FOP.

a) The laboratory shall be licensed pursuant to the Federal Clinical Laboratories Improvement Act of 1967. This does not apply to breath tests.

b) Any breath test equipment and its operator shall conform to the rules and regulations of the Nebraska Department of Health.

4. Results of any drug test shall be returned to the Administrative Commander. The results shall remain confidential. Only those individuals required to make decisions regarding continued employment or treatment shall be provided the information.

5. The tested employee shall be notified as soon as practical regarding the test results.

H. Drug Screening:

1. The following is a list of drugs that employees shall be screened for:

a) Cocaine
b) Amphetamines
c) Methamphetamines
d) Marijuana (THC)
e) PCP
f) Opiates

g) Barbiturates
h) Methadone
i) Benzodiazepines
j) methaqualone
k) Codeine/morphine

2. In the event the test results are positive, the primary laboratory shall verify the results through a second test on the same sample. If the second test is positive, a confirmation test using a separate methodology shall be conducted.

3. A Medical Review Officer, who shall be a licensed medical doctor, may be requested to review positive tests. This review is to determine if the positive result may be explained by the employee's medical history. The Medical Review Officer may interview the employee and may perform a physical examination on such employee. Refusal to submit to an interview or to consent to such a physical examination shall be grounds for disciplinary action up to and including termination.

4. Employees testing positive shall be notified of the results in a conference attended by the Sheriff and the appropriate division commander. If the employee requests, he or she may have an FOP representative present at the conference.

5. An employee who tests positive for drugs may, at the employee's expense, have an additional test conducted on the same sample at a laboratory selected by the Sheriff's Office meeting minimum criteria for drug testing.

6. If an employee tests positive, he or she shall be subject to disciplinary action up to and including termination (see G-2200 Discipline). Factors to be considered in determining appropriate discipline include, but are not limited to:

a) The position held by the employee and the resulting danger to the health and safety of the employee or the public by the employee's use of controlled substances or alcohol.

b) The impact of the employee's use of controlled substances or alcohol on the employee's ability to perform his or her duties in the future.

c) The employee's past job performance.

d) The length of employment with the Sheriff's Office.

e) The employee's current job performance.

f) The extent and nature of past disciplinary actions. A second violation of this policy shall result in termination.

g) Whether the employee's conduct was detrimental to the reputation of the Sheriff's Office.

7. Employees testing positive, and not terminated, shall be required to successfully complete a treatment program recommended by appropriate medical personnel and approved by the Sheriff.

8. Employees who refuse to undertake prescribed treatment or refuse to submit to follow-up testing shall be terminated. Failure to complete prescribed treatment without due cause, shall also result in termination.